

LOAN AGREEMENT

THIS LOAN AGREEMENT (this "Agreement") dated this 20th day of April, 2023

BETWEEN:

Person who lends from \$100 to \$5000 to Dr Rich Mclean of

(the "Lender")

OF THE FIRST PART

AND

Dr Rich McLean of _____
(the "Borrower")

OF THE SECOND PART

AND

suellen green of power of attorney
(the "Co-Signer")

OF THE THIRD PART

IN CONSIDERATION OF the Lender loaning certain monies (the "Loan") to the Borrower, and the Borrower repaying the Loan to the Lender, the parties agree to keep, perform and fulfil the promises and conditions set out in this Agreement:

Loan Amount & Interest

1. The Lender promises to loan \$5,000.00 AUD to the Borrower and the Borrower promises to repay this principal amount to the Lender, without interest payable on the unpaid principal, beginning on 21 April 2023.

Payment

2. This Loan is repayable within 30 day(s) of the Lender providing the Borrower with written notice of demand.
3. At any time while not in default under this Agreement, the Borrower may make lump sum payments or pay the outstanding balance then owing under this Agreement to the Lender without further bonus or penalty.

Default

4. Notwithstanding anything to the contrary in this Agreement, if the Borrower defaults in the performance of any obligation under this Agreement, then the Lender may declare the principal amount owing under this Agreement at that time to be immediately due and payable.

Extra Clause

5. This loan will be paid back THREE TIMES the amount of any investment from \$100 to \$5000 when my detriments of work cover, my former partner settlement, my health super settlement or my HCF income assist settlement are paid to me after the legal processes are followed and concluded.

Governing Law

6. This Agreement will be construed in accordance with and governed by the laws of the State of Victoria.

Costs

7. The Borrower shall be liable for all costs, expenses and expenditures incurred including, without limitation, the complete legal costs of the Lender incurred by enforcing this Agreement as a result of any default by the Borrower and such costs will be added to the principal then outstanding and shall be due and payable by the Borrower to the Lender immediately upon demand of the Lender.

Co-Signer Liability

8. The Co-Signer agrees to be jointly and severally liable with the Borrower for the Borrower's obligations under this Loan.

Binding Effect

9. This Agreement will pass to the benefit of and be binding upon the respective heirs, executors, administrators, successors and permitted assigns of the Borrower, Lender, and Co-Signer. The Borrower and Co-Signer waive presentment for payment, notice of non-payment, protest, and notice of protest.

Amendments

10. This Agreement may only be amended or modified by a written instrument executed by the Borrower, Lender, and Co-Signer.

Severability

11. The clauses and paragraphs contained in this Agreement are intended to be read and construed independently of each other. If any term, covenant, condition or provision of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, it is the parties' intent that such provision be reduced in scope by the court only to the extent deemed necessary by that court to render the provision reasonable and enforceable and the remainder of the provisions of this Agreement will in no way be affected, impaired or invalidated as a result.

General Provisions

12. Headings are inserted for the convenience of the parties only and are not to be considered when interpreting this Agreement. Words in the singular mean and include the plural and vice versa. Words in the masculine mean and include the feminine and vice versa.

Entire Agreement

13. This Agreement constitutes the entire agreement between the parties and there are no further items or provisions, either oral or otherwise.

IN WITNESS WHEREOF, the parties have duly affixed their signatures on this 20th day of April, 2023.

SIGNED, SEALED, AND DELIVERED

this 20th day of April, 2023 in front of the
person below who is over 18 years of age and
not involved with the contents of this document
or related to any of the parties in this document.

(signature of witness)

WITNESS DETAILS:

Name: _____

Address: _____

Occupation: _____

Person who lends from \$100 to \$5000 to Dr
Rich Mclean

per: _____(SEAL)

SIGNED, SEALED, AND DELIVERED

this 20th day of April, 2023 in front of the
person below who is over 18 years of age and
not involved with the contents of this document
or related to any of the parties in this document.

(signature of witness)

WITNESS DETAILS:

Name: _____

Address: _____

Occupation: _____

Dr Rich McLean

SIGNED, SEALED, AND DELIVERED

this 20th day of April, 2023 in front of the
person below who is over 18 years of age and
not involved with the contents of this document
or related to any of the parties in this document.

(signature of witness)

suellen green

WITNESS DETAILS:

Name: _____

Address: _____

Occupation: _____

Required Disclosures

If the lender is in the business of providing loans and the loan is predominantly for personal, domestic or household purposes then the *National Credit Code* may apply to you. To determine if the *National Credit Code* applies to you and whether you need a license please review the following link: (If you are still unsure you may need to consult a qualified attorney in your jurisdiction)

1. A pre-contractual statement setting out the matters required by the *National Credit Code*. The requirements for the pre-contractual statement can be found in section 17 of the *National Credit Code* at:
http://www.austlii.edu.au/au/legis/cth/consol_act/nccpa2009377/sch1.html
2. An information statement setting out the borrower's statutory rights and statutory obligations. A copy of the information statement (Form 5) can be found at:
<http://www.comlaw.gov.au/Details/F2012C00052>

In such situations, the lender must also provide the borrower with an amortisation schedule which can be purchased from LawDepot.com or a similar document containing the following information, as outlined in section 17 of the *National Credit Code*:

- a. the calculation of the monthly payments;

- b. the total amount of interest payable;
- c. the amount of each repayment and when it is to be made.

You can review the *National Consumer Credit Protection Act* at:
<http://www.comlaw.gov.au/Details/C2012C00684>